

Cal.App.3d 682, 692.

With respect to demurrers, courts are generally quite liberal in allowing amendment. When a demurrer is sustained, the court must determine if “there is a reasonable possibility that the defect can be cured by amendment.” *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318. “Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” *Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.

In the instant matter, the Defendant admits all of the allegations in the Complaint and makes no request for leave to amend the Answer.

The court does not find that there exists a reasonable possibility that the deficient Answer can be cured through amendment.

**Disposition**

Plaintiff’s Motion is granted. Judgment is awarded in the amount of \$1,937.78.

Costs are awarded in the amount of \$60.

Plaintiff shall prepare and submit a proposed order and judgment, and serve notice of entry of same on Defendant.

**8. 9:00 AM CASE NUMBER: MSL22-01124**  
**CASE NAME: BANK OF AMERICA, N.A. VS. ALAN DAS NEVES**  
**\*HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS**  
**FILED BY: BANK OF AMERICA, N.A.**  
**\*TENTATIVE RULING**

Plaintiff filed a Motion for Judgment on the Pleadings (“Motion”), along with a Memo of Points and Authorities, a Memo on Costs, and a Declaration reflecting an attempt to meet and confer. The Motion and Memos were timely served by mail on the address for Defendant provided in the Answer.

There is no evidence that the Declaration was served on the Defendant, but an insufficient declaration of an attempt to meet and confer is not grounds for the denial of a motion for judgment on the pleadings, under CCP Section 439(a)(4).

The Motion is unopposed.

**Background**

Plaintiff’s Motion argues that Defendant’s Answer both admits the allegations of the

Complaint and offers no defense.

The Complaint alleges common counts in that Defendant obtained a credit account from Plaintiff, borrowed money on this account, then failed to make payments on the account when they were due, owing a balance of \$4,143.88.

The memo on costs reflects costs of \$356.

The Complaint is a collections matter, under CRC 3.740, and is not verified.

However, the Defendant, in the Answer filed 5/23/22, reflects a general denial, states various affirmative defenses, and a lack of sufficient information upon which to ascertain if further defenses exist.

Plaintiff had, though, filed a motion to deem the truth of matters admitted in a set of Request for Admissions (the “RFAs”) served on Defendant which was granted by the Court. (See Order filed 2/7/23, (the “Deemed Admitted Order”).)

The Court takes judicial notice of the Deemed Admitted Order and the underlying court filings in connection with the Deemed Admitted Order.

### **Analysis**

A motion for judgment on the pleadings may be brought by a plaintiff where the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. Code Civ. Proc. § 438(c); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2024) (“Rutter Civ. Pro.”) § 7:290. The grounds for a motion for judgment on the pleadings must appear on the face of the pleadings or be based on facts that a court may judicially notice. Civ. Proc. § 438(d); Rutter Civ. Pro., § 7:291. Matters that may be judicially noticed include a party’s admissions or concessions which cannot reasonably be controverted. *Pang v. Beverly Hospital, Inc.* (2000) 79 Cal.App.4th 986, 989-990.

If a material allegation of the complaint is not controverted by the answer, then it will be considered as true. *CCP 431.20(a)*.

Admissions from the Deemed Admitted Order are binding upon Defendant for purposes of a motion for judgment on the pleadings. *Myers v. Trendwest Resorts, Inc.* (2009) 178 Cal.App.4th 735, 746 (“Judicial admissions may be made in a pleading, by stipulation during trial, or by response to request for admission.”).

Based upon the Deemed Admitted Order, it is evident that Defendant has

been deemed to admit to the fact of the subject debt and the amount owing, \$4,143.88.

**Disposition**

Plaintiff's Motion is Granted. Judgment is awarded in the amount of \$4,143.88.

Costs are awarded in the amount of \$356.

Plaintiff shall prepare and submit a proposed order and judgment, and serve notice of entry of same on Defendant.